

Court intends to dismiss the case without prejudice pursuant to Gov. Code § § 68608(b).

BELTRAN VS. M.K. & A., LLC

Case Number: 23CV-0203159

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued to Plaintiff's counsel Travis E. Stroud for failing to appear at the hearing September 16, 2024. Counsel had notice of the hearing as evidenced in the Notice of Entry of Order filed on May 8, 2024 and the Court's Tentative Ruling on August 26, 2024. Additionally, Plaintiff filed a motion that was noticed for September 16, 2024. Counsel did not file a written response to the Order to Show Cause. Instead, a Substitution of Attorney was filed on October 30, 2024 and Plaintiff now has new counsel. With no sufficient excuse for the non-appearance, sanctions are imposed against Travis E. Stroud in the amount of \$250. The clerk is directed to prepare a separate Order of Sanctions. **No appearance is necessary at 8:30 a.m., however, the matter will be called at 9:00 a.m. where the Court will expect an appearance by new counsel.**

COLBURN VS. CITY OF REDDING, ET AL.

Case Number: 23CV-0202762

Tentative Ruling on Motion for Summary Judgment: This is a personal injury action, brought by Plaintiff Yvonne Colburn. Plaintiff alleges she tripped and fell on a city sidewalk on July 12, 2022, and sustained injuries. Her Amended Complaint alleges one cause of action: premises liability, for a dangerous condition on public property. Defendant is the City of Redding ("City"). The City has also filed a Cross-Complaint for indemnity and equitable contribution against Linda Olson, as Trustee for the Olson Family Trust. The City moves for summary judgment. Plaintiff opposes the motion.

Request for Judicial Notice: The City's request for judicial notice of the Amended Complaint is granted.

Objections to Evidence: Plaintiff's objections to evidence are overruled. City's objections to evidence numbers 1-7, and 9 are overruled. City's objections to evidence numbers 8 and 10 are sustained.

Standard on Summary Judgment: The party moving for summary judgment bears the initial burden to make a prima facie showing that there are no triable issues of material fact. *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850. There is a genuine issue of material fact only if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. *Id.* at 845. A defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. CCP § 437c(p)(1). The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto. CCP § 437c(p)(2).

In ruling on a motion for summary judgment, the Court must consider not only the direct evidence presented, but also reasonable inferences to be drawn therefrom, and must view the evidence and inferences "in the light most favorable to the opposing party." CCP § 437c(c); *Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at 843. "Because summary judgment is a drastic measure that deprives the losing party of trial on the merits, it may not be invoked unless it is clear from the declarations that there are no triable issues of material fact." *Johnson v. Superior Court* (2006) 143 Cal.App.4th 297, 304.

Premises Liability for a Dangerous Condition of Public Property: "Except as provided by statute, a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was

in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either: (a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or (b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.” Gov. Code § 835.

Defendant bears the burden of making a prima facie showing that there is no triable issue of material fact with respect to one of the elements set forth in Gov. Code § 835. The City now moves for summary judgment on the grounds that there is no triable issue of material fact with respect to: 1) actual notice of the dangerous condition, 2) constructive notice of the dangerous condition, 3) whether a dangerous condition was created by an act or omission of an employee of the City within the scope of employment, 4) whether there was a dangerous condition as a matter of law per the trivial defect doctrine, and 5) whether the condition was open, obvious, and admittedly known to Plaintiff.

Actual or Constructive Notice. Defendant’s first and second arguments are that there is no triable issue regarding whether the City had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition. Section 835.2(a) provides that a public entity had actual notice of a dangerous condition within the meaning of subdivision (b) of Section 835 if it had actual knowledge of the existence of the condition and knew or should have known of its dangerous character. Here, the City’s Separate Statement of Undisputed Material Facts (“UMF”) states that the first time a report was made to the City regarding the location where Plaintiff alleged she fell was after the accident, on July 29, 2022. (Decl. Buchanan ¶¶ 11, 13.) The City’s evidence further provides that it has never had any reports of other defects, trips, falls, or injuries at the location identified by Plaintiff since the sidewalk had been installed. (Decl. Buchanan ¶ 14.) Plaintiff argues the issue is not whether a report was made, but whether the City had notice of the defect. Plaintiff provides evidence that at least two years prior to Plaintiff’s fall, the City knew of the defect and marked it for repair and to warn pedestrians with orange spray paint. (Mattson Decl. ¶5; Colburn Depo. 100:24-101:11.) Plaintiff has established there is a triable issue of material fact as to whether the City had actual notice of the dangerous condition.

Section 835.2(b) provides a public entity had constructive notice of a dangerous condition within the meaning of subdivision (b) of Section 835 only if the plaintiff establishes that the condition had existed for such a period of time and was of such an obvious nature that the public entity, in the exercise of due care, should have discovered the condition and its dangerous character. On the issue of due care, admissible evidence includes but is not limited to evidence as to: (1) Whether the existence of the condition and its dangerous character would have been discovered by an inspection system that was reasonably adequate (considering the practicability and cost of inspection weighed against the likelihood and magnitude of the potential danger to which failure to inspect would give rise) to inform the public entity whether the property was safe for the use or uses for which the public entity used or intended others to use the public property and for uses that the public entity actually knew others were making of the public property or adjacent property. (2) Whether the public entity maintained and operated such an inspection system with due care and did not discover the condition. With respect to whether the City’s inspection system was reasonably adequate, and was operated with due care, the City presents evidence that in 2022, it had 600 miles of sidewalk, eight full-time maintenance workers and two part-time workers, which would make it virtually impossible and inefficient for the City to inspect and locate every elevated sidewalk panel. (Decl. Webb ¶¶ 4,5; Decl. Buchanan ¶ 2.) The City also provides evidence regarding its system for inspection, which has city workers scanning for sidewalk defects in the course of their usual duties and mark and report these for repair as they are discovered. Citizens can also report concerns through the City’s website or by phone. (Decl. Webb ¶¶ 6,8-10; Decl. Buchanan ¶¶8-9.) Plaintiff disputes the City’s evidence with respect to the number of miles of sidewalk and the number of maintenance workers. (Decl. Boyce ¶ 4.) Plaintiff also disputes that the City’s system is reasonably adequate, in that, by neglecting to have an inspection system, City workers were not in the

area of the defect even though it existed for years. (Decl. Webb ¶6; Decl. Buchanan ¶ 5, 14, 15.) Plaintiff has established a triable issue of material fact exists as to whether the City maintained and operated a reasonably adequate inspection system.

Dangerous Condition Created by Act or Omission of City Employee. Defendant's third argument is that there is no triable issue of material fact regarding whether a negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition. In support, the City provides evidence that the roots of a tree were the obvious cause of the sidewalk uplift, and the tree is not maintained by the City. (Decl. Buchanan ¶ 20.) Plaintiff does not dispute this fact. There is no triable issue of material fact with respect to this element. This element is an alternative to actual or constructive notice in Gov. Code § 835. It is not required to establish premises liability for a dangerous condition.

Dangerous Condition. Defendant's fourth argument is that there is no triable issue of material fact with respect to whether a dangerous condition existed. Gov. Code § 830 provides that "dangerous condition" means a condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used. Gov. Code § 830.2 provides that a condition is not a dangerous condition within the meaning of this chapter if the trial or appellate court, viewing the evidence most favorably to the plaintiff, determines as a matter of law that the risk created by the condition was of such a minor, trivial or insignificant nature in view of the surrounding circumstances that no reasonable person would conclude that the condition created a substantial risk of injury when such property or adjacent property was used with due care in a manner in which it was reasonably foreseeable that it would be used. Following *Huckey v. City of Temecula*, 37 Cal.App.5th 1092 (2019), the court's analysis of whether a walkway defect is trivial involves as a matter of law two essential steps. "First, the court reviews evidence regarding type and size of the defect. If that preliminary analysis reveals a trivial defect, the court considers evidence of any additional factors [bearing on whether the defect presented a substantial risk of injury]. If these additional factors do not indicate the defect was sufficiently dangerous to a reasonably careful person, the court should deem the defect trivial as a matter of law" *Ibid.* Sidewalk elevations ranging from three-quarters of an inch to one and one-half inches have generally been held trivial as a matter of law. *Id.* at 1107. The City's evidence in support of this argument relies mainly on the Declaration of Chris Carmona, the City's Risk Manager. Carmona measured the sidewalk panel at three points along its edge. He does not specify how he chose those points, or the measurement of their locations along the sidewalk edge. The estimated height in comparison to the next sidewalk panel varied from negative ¼ inch to 2 inches tall, at the points he chose to measure. (Decl. Carmona ¶¶ 6-8, Ex. A-C.) Carmona reviewed Plaintiff's deposition and her mark where she alleges her foot hit the uplifted panel. Using that information, he estimates the size of the defect is approximately 1 7/8 inches – 1 11/16 inches at the point Plaintiff identified. (Decl. Carmona ¶ 9.) Carmona did not measure the maximum height of the defect. (Decl. Carmona Ex. C, D.) Carmona did not actually measure the height of the defect at the point where Plaintiff marked the photo. (Decl. Carmona ¶ 9.) Carmona did not provide any explanation for how he made his estimation of the height of the location where Plaintiff marked. Additionally, the photo Plaintiff marked is Exhibit F to the Decl. of Carmona. Exhibit F does not show the dots Carmona says he used to take measurements. There is a triable issue of material fact with respect to the size of the defect. The City has not carried its burden to make a prima facie showing that the defect was trivial as a matter of law.

Open, Obvious, and Known Condition. Defendant's final argument is that summary judgment is proper because the condition was open, obvious and admittedly known to Plaintiff. "Generally, if a danger is so obvious that a person could reasonably be expected to see it, the condition itself serves as a warning, and the landowner is under no further duty to remedy or warn of the condition." (*Krongos v. Pacific Gas & Electric Co.* (1992) 7 Cal.App.4th 387, 393.) In that situation, owners and possessors of land are entitled to assume others will "perceive the obvious" and take action to avoid the dangerous condition. (*Haberlin v. Peninsula Celebration Assn.* (1957) 156 Cal.App.2d 404, 408, 319 P.2d 418.) An exception to this general rule exists when "it is foreseeable that the

danger may cause injury despite the fact that it is obvious (e.g., when necessity requires persons to encounter it).” (*Osborn, supra*, 224 Cal.App.3d at p. 122, 273 Cal.Rptr. 457, italics omitted.) In other words, while the obviousness of the condition and its dangerousness may obviate the landowner’s duty to remedy or warn of the condition in some situations, such obviousness will not negate a duty of care when it is foreseeable that, because of necessity or other circumstances, a person may choose to encounter the condition. *Jacobs v. Coldwell Banker Residential Brokerage Co.* (2017) 14 Cal. App. 5th 438, 447. Here, the City’s Separate Statement of Undisputed Facts and Supporting Evidence states: “All pertinent facts relative to this issue are already stated and referenced above.” This is inadequate and does not comply with California Rule of Court Rule 3.1350(d). Nonetheless, to the extent the City is relying on its argument and supporting evidence that Plaintiff was aware of the condition, and did not use due care in failing to navigate around it, the Court finds the City has not met its burden. The City has presented evidence that Plaintiff was familiar with the defect and had previously made a point to avoid it on her walk. (Decl. CPB Ex. 2.) Plaintiff has presented evidence that the sidewalk is the only pedestrian outlet. (Depo Colburn.) The only way to avoid the sidewalk is to cross a street without a crosswalk, walk in the street around cars, or walk on the grass. (Depo. Colburn.) There were multiple defects within steps of one another. (Depo. Colburn.) Here, there are triable issues of material fact with respect to whether the condition created a foreseeable risk, and whether a reasonable person may nevertheless choose to encounter it due to necessity or other circumstances.

Defendant’s Motion for Summary Judgment is **DENIED**. Plaintiff has lodged a proposed order which will be executed.

COLBURN VS. CITY OF REDDING, ET AL.

Case Number: 23CV-0202762

Tentative Ruling on Motion for Summary Judgment: This is a personal injury action, brought by Plaintiff Yvonne Colburn. Plaintiff alleges she tripped and fell on a city sidewalk on July 12, 2022, and sustained injuries. Her Amended Complaint alleges one cause of action: premises liability, for a dangerous condition on public property against Defendant the City of Redding (“City”). The City has also filed a Cross-Complaint for indemnity and equitable contribution against Linda Olson, as Trustee for the Olson Family Trust (“Olson”). Olson moves for summary judgment. Plaintiff opposes the motion.

Standing: In the Reply, Olson raises the issue of Plaintiff’s standing to oppose the Motion. Olson suggests that the Motion is supposed to be understood as against the City’s Cross-Complaint for indemnity. The Court, and apparently also the Plaintiff and the City, did not understand the Motion to be directed to the City’s Cross-Complaint. The City has not filed an opposition. The Motion does not address either of the City’s Causes of Action against Olson. The Motion is fully directed to Plaintiff’s claims for premises liability. The scope of Defendants’ initial burden is defined by the pleadings. *See 580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal.App.3d 1, 18. Here, Olson addresses only the Cause of Action of Plaintiff’s Amended Complaint. Further, under summary judgment law, any party to an action, whether plaintiff or defendant, may move the court for summary judgment in his favor on a cause of action (i.e., claim) or defense. Likewise, any adverse party may oppose the motion, and, where appropriate, must present evidence including affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice must or may be taken. An adverse party who chooses to oppose the motion must be allowed a reasonable opportunity to do so. *Aguilar v. Atl. Richfield Co.* (2001) 25 Cal. 4th 826, 843 (internal citations omitted). Therefore, the Court finds Plaintiff has standing to oppose the Motion and will proceed to the merits.

Request for Judicial Notice: Olson requests the Court take judicial notice of the Amended Complaint, and the Cross Complaint, pursuant to Evidence Code §§ 451-453. The request is granted.

Objections to Evidence: Plaintiff’s objections to evidence are overruled. Olson’s objections to evidence numbers 1-7, and 9 are overruled. Olson’s objections to evidence numbers 8 and 10 are sustained.